

NISKANEN, et al v PIEROTTI, et al

25CV48291

**PLAINTIFF'S MOTION TO COMPEL RESPONSES TO
REQUEST FOR PRODUCTION OF DOCUMENTS;
DEFENDANT PIEROTTI'S DEMURRER
AND MOTION TO STRIKE**

This case involves claims of unfair business practices and fraud brought by Brian Niskanen ("Brian"), Alicia Niskanen ("Alicia"), Willem Emmer ("Willem"), Cindy Emmer ("Cindy"), Kevin Mead ("Kevin"), and Karen Mead ("Karen") (collectively "Plaintiffs") against John Pierotti ("Pierotti"), Greenhorn Creek Design Review Committee ("Committee") and Greenhorn Creek Design Review, LLC ("LLC") (collectively, "Defendants.")

Now before the Court are multiple motions: 1) Defendants' demurrer to the First Amended Complaint ("FAC"), 2) Defendant's Motion to Strike the FAC, and 3) Plaintiffs' Motion to Compel discovery responses.

The Motion to Strike and the Motion to Compel do not comply with Local Rule 3.3.7. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

3.3.7 Tentative Rulings (Repealed Eff 7/1/06, As amended 1/1/18) All parties appearing on the Law and Motion calendar shall utilize the tentative ruling system. Tentative Rulings are available by 2:00 p.m. on the court day preceding the scheduled hearing and can be accessed either through the court's website or by telephoning 209-754-6285. The tentative ruling shall become the ruling of the court, unless a party desiring to be heard so advises the Court no later than 4:00 p.m. on the court day preceding the hearing including advising that all other sides have been notified of the intention to appear by calling 209-754-6285. Where appearance has been requested or invited by the Court, all argument and evidence is limited pursuant to Local Rule 3.3. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

Pursuant to Local Rule 3 3 7, the Court will make a tentative ruling on the merits of this matter by 2:00 p.m. the court day before the hearing. The complete text of the tentative ruling may be accessed on the Court's website or by calling 209-754-6285 and listening to the recorded tentative ruling. If you do not call all other parties and the Court by 4:00 p.m. the court day preceding the hearing, no hearing will be held and the tentative ruling shall become the ruling of the court [emphasis in original.]

Failure to include this language in the notice may be a basis for the Court to deny the motion.

Accordingly, those motions are **DENIED without prejudice** to refile.

As set forth below, the Demurrer is sustained, with leave to amend.

I. Facts

Pierotti formed the LLC in or around October 28, 2021, and operated the LLC as a professional architectural entity in the state of California. (FAC ¶¶ 12, 13.) Plaintiffs allege that between October 28, 2021, and December 17, 2024, the Pierotti and LLC obtained money for “architectural design review fees” from “people who owned in the Greenhorn Creek and Seasons subdivisions in Angels Camp, California,” and did so despite the fact that those defendants are not licensed architects. (*Id.* ¶ 14.)

On November 12, 2024, Pierotti formed the Committee to “manage a common interest development under the Davis-Stirling Common Interest Development Act.” (FAC ¶ 15.) On December 17, 2024, Pierotti cancelled the LLC with the California Secretary of State. (*Id.* ¶ 17.) Plaintiff alleges Defendants operated their businesses solely to “intimidate, harass, threaten, extort, and bully plaintiffs and others”. (*Id.* ¶ 18.)

On June 29, 1995, Greenhorn Creek Associates, LLP recorded CC&Rs with the Calaveras County Recorder's Office with respect to the Greenhorn Creek subdivision in Angels Camp, California. (FAC ¶ 19, Ex. 4.) Section 6.06 of the CC&Rs provides that the prevailing party in any lawsuit may be awarded attorney's fees. (*Ibid.*)

On November 21, 2000, Lakemont Greenhorn Creek, LLC recorded CC&Rs with

Calaveras County Recorder's Office with respect to the Seasons subdivision in Angels Camp, California. (FAC ¶ 21.)

By December 1, 2021, the original entities which created and/or oversaw the various CC&Rs were defunct; Plaintiffs allege that at that time, there was no entity authorized to create and oversee a design review committee. (FAC ¶ 24.)

On April 24, 2025, Pierotti and Committee filed a small claims action against Brian [25SC8069], seeking \$6,124.00 related to Brian's alleged failure to seek and obtain design review approval. (FAC ¶ 26.) [This small claim action was dismissed without prejudice without any hearing being held.]

Plaintiffs allege that they have been disputing Defendants' right to require design plans and approval and in so doing have incurred \$35,000.00 in attorney's fees. They allege that these fees are "special damages" directly resulting from Defendants' conduct. (FAC ¶ 34.)

The FAC alleges causes of action for: 1) Unfair Business Practices, 2) Fraud-Intentional Misrepresentation, and 3) Fraud-Negligent Misrepresentation, 4) Civil Extortion, and 5) Declaratory Relief.

II. Legal Standards

"A demurrer tests the sufficiency of a complaint and admits all facts properly pleaded." (*Setliff v. E.I. Du Pont de Nemours & Co.* (1995) 32 Cal. App. 4th 1525, 1533.) The court assumes the truth of the allegations asserted but does not assume the truth of "contentions, deductions, or conclusions of law." (*California Logistics, Inc. v. State of California* (2008) 161 Cal. App. 4th 242, 247.) The court can further look at those facts that "reasonably can be inferred from those expressly pleaded and matters of which judicial notice has been taken." (*MKB Management, Inc. v. Melikian*, (2010), 184 Cal.App.4th 796, 802.) If a complaint does not sufficiently state a cause of action, "but there is a reasonable probability that a defect can be cured by amendment, leave to amend must be granted." (*Quelimane Co. v. Stewart Title Guaranty Co.* (1998) 19 Cal. 4th 26, 38.)

Defendant asserts that the Plaintiff's Complaint is subject to demurrer pursuant to Civ. Code 430.10 (e) (failure to state a claim).

III. Discussion

A. Unfair Business Practices

For a private person to bring an unfair business practice claim, the private person must have suffered an “injury in fact.” (*Hall v. Time, Inc.* (2008) 158 Cal.App.4th 847, 854.) An “injury in fact” may occur where the plaintiff “expended money due to the defendant’s unfair actions,” lost money or property, or been denied money “to which she has a cognizable claim.” (*Ibid.*) Additionally, the FAC must identify the “particular section of the statutory scheme which was violated” and “describe with reasonable particularity the facts supporting violation.” (*Khoury v. Maly’s of California, Inc.* (1993) 14 Cal.App.4th 612, 619.)

Plaintiffs do not identify the specific section of the statutory scheme which was violated, nor do they provide “with reasonable particularity” the facts supporting violation. As such, they cannot state a claim for unfair business practices.

Defendants take greater issue with the fact that Plaintiffs do not allege any “injury in fact” other than incurring attorney’s fees related to their ongoing dispute with Defendants about the ability to require design plans and pay review fees. Plaintiffs do not allege that they ever submitted plans that were rejected, that they paid any plan review fees, or that they were somehow misled or induced to pay any fees or monies whatsoever to the Defendants. That is, there is no causal allegation linking any unfair business practice with causing damages.

However, “our courts have consistently ‘distinguish[ed] between’ attorney’s fees that are sought as ‘the allowance ... to the prevailing party as an incident to the principal cause of action,’ and those that are sought as ‘part of the cause of action.’” (*Monster, LLC v. Superior Court* (2017) 12 Cal.App.5th 1214, 1228.) Where attorney’s fees are the damages incurred by the Defendants’ conduct, then they may be recovered as special damages if pled and proved at trial. (*Ibid.*) Here, Plaintiffs allege that because of Defendants’ conduct (pled without particularity) they incurred special damages in the form of attorney’s fees.

The problem with Plaintiff’s claim for attorney’s fees as special damages is that Plaintiffs are attempting to utilize contractual attorney’s fees as an element of its UCL claims, but the UCL does not allow for recovery of attorney’s fees as damages. Thus, Plaintiffs have not been injured in a way that is recognized by the UCL as an injury in fact.

The FAC fails to state a claim because it does not specify the statutory violations with specificity nor the factual allegations with particularity and does not allege an injury compensable under the UCL. As such, the demurrer is sustained, with leave to amend.

B. Fraud – Intentional or Negligent Misrepresentation

To state a cause of action for fraud, Plaintiffs must allege: “(a) misrepresentation (false representation, concealment or nondisclosure); (b) knowledge of falsity (or 'scienter'); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage.” (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 638.) Fraud must be pled with specificity, and a plaintiff must allege the "who, what, when, where, and how" of the alleged misrepresentation, and must plead facts showing falsity, knowledge of falsity, intent to induce reliance, justifiable reliance, and resulting damage. (*Ibid.*)

Defendants demur to the fraud causes of action on the grounds that they have not been pled with specificity. They assert that mere allegations of “false representations” to various Plaintiffs is insufficiently vague because it is unclear what the exact representations were, when and to whom they were made, why they were false, and who made the statements. The Court agrees that the FAC lacks the particularity needed to state a cause of action for fraud.

Accordingly, the demurrer as to the causes of action for fraud based on intentional and negligent misrepresentation is sustained, with leave to amend.

C. Civil Extortion

Civil extortion “is essentially a cause of action for moneys obtained by duress, a form of fraud.” (*Fuhrman v. California Satellite Systems* (1986) 179 Cal.App.3d 408, 426.) Plaintiffs do not allege that Defendants ever obtained any monies from them. They have only alleged that they incurred attorney’s fees – which were paid to someone other than Defendants.

Accordingly, the demurrer as to the cause of action for civil extortion is sustained, with leave to amend.

III. Conclusion

The **Demurrer to Plaintiff’s FAC is SUSTAINED, with leave to amend.**

The clerk shall provide notice of this ruling to the parties forthwith. Defendants to submit a formal Order and Judgment complying with Rule 3.1312 in conformity with this Ruling.

**CAPITAL ONE, NA, SUCCESSOR BY MERGER
TO DISCOVER BANK, v SKAAR**

26CF15614

PLAINTIFF'S MOTION FOR JUDGMENT ON THE PLEADINGS

This matter involves a claim for credit card debt brought by Capitol One, N.A. ("Plaintiff") against RJ Skaar ("Defendant.")

Now before the Court is a motion for judgment on the pleadings.

The motion does not comply with Local Rule 3.3.7. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

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